AICTE GUIDELINES

ALL INDIA COUNCIL FOR TECHNICAL EDUCATION

New Delhi

NOTIFICATION

Sub: Prevention and prohibition of Ragging in technical Institutions, Universities including Deemed to be Universities imparting technical education.

F.No.37-3/Legal/AICTE- In exercise of the powers conferred under Section 23 read with Section10 (b), (g), (p) and (q) of AICTE Act, 1987, the All India Council for Technical Education, hereby makes the following Regulations: -

1. **Short title and commencement: -**

(i) These Regulations may be called the All India Council for Technical Education (Prevention and Prohibition of Ragging in Technical Institutions, Universities including Deemed to be Universities imparting technical education) Regulations.

(ii) They shall come into force on the date of the notification.

2. **Objectives: -**

In view of the directions of the Hon'ble Supreme Court in SLP No. 24295 of 2006 dated 16-05-2007 and in Civil Appeal number 887 of 2009, dated 08-05-2009 to prohibit, prevent and eliminate the scourge of ragging including any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student, or indulging in rowdy or undisciplined activities by any student or students which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension here of in any fresher or any other student or asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student, with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student, in all higher education institutions in the country, and thereby, to provide for the healthy development, physically and psychologically, of all students, the All India Council for Technical Education,(AICTE) brings forth these Regulations.

3. **Definitions: -**

(a) **"Act** "means the All India Council for Technical Education Act 1987 (52 of 1987);

(b) **"Technical Institution"** means an institution of Government, Government Aided and Private (self-financing) conducting the courses/programme's in the field of technical education, training and research in Engineering, Technology including MCA, Architecture, Town Planning, Management, Pharmacy, Hotel Management & Catering Technology, Applied Arts & Crafts and such other programme's and areas as notified by the Council from time to time;

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(c) **'University"** means a University defined under clause (f) of section 2 of the University Grants Commission Act, 1956 and includes an institution deemed to be a University under section 3 of that Act.

(d) **"Academic year"** means the period from the commencement of admission of students in any course of study in the institution up to the completion of academic requirements for that particular year.

(e) **"Head of the institution"** means the Vice-Chancellor in case of a university or a deemed to be university, the Principal or the Director such other designation as the executive head of the institution or the college is referred.

(f) **"Fresher** "means student who has been admitted to an institution and who is undergoing his/her first year of study in such institution.

(g) Words and expressions used and not defined herein but defined in the Act or assigned to them in the Act in the General Clauses Act,1887, shall have the meanings respectively or in the General Clauses Act, 1887, as the case maybe.

(h) And all other words and expressions used herein and not defined but defined in the All India Council for Technical Education Act, 1987 (52 of 1987), shall have the meanings respectively assigned to them in the said Act;

4. What constitutes Ragging: - Ragging constitutes one or more of any of the following acts:

a. Any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student;

b. Indulging in rowdy or undisciplined activities by any student or students which causes or is likely to cause annoyance, hardship, physical or psychological harm or to raise fear or apprehension thereof in any fresher or any other student;

c. Asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student;

d. Any act by a senior student that prevents, disrupts or disturbs the regular academic activity of any other student or a fresher;

e. Exploiting the services of a fresher or any other student for completing the academic tasks assigned to an individual or a group of students.

f. Any act of financial extortion or forceful expenditure burden put on a fresher or any other student by students;

g. Any act of physical abuse including all variants of it: sexual abuse, homosexual assaults, stripping, forcing obscene and lewd acts, gestures, causing bodily harm or any other danger to health or person;

h. Any act or abuse by spoken words, emails, posts, public insults which would also include deriving perverted pleasure, vicarious or sadistic thrill from actively or passively participating in the discomfiture to fresher or any other student;

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i. Any act that affects the mental health and self-confidence of a fresher or any other student with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student.

5. **Measures for prevention of ragging: -**

It shall be mandatory for every technical Institution, University, deemed to be University imparting technical education to take following measures for prevention of ragging at such institutions.

1. The advertisement issued for admission by a technical institution, University including Deemed to be University concerned and/or the admission authority/affiliating University/State Govt. /UT/Central Govt. as the case may be, shall clearly mention that ragging is totally banned and anyone found guilty of ragging and/or abetting ragging is liable to be punished.

2. The 'Prospectus' and other admission related documents shall contain directions of the Supreme Court Affiliating University/admission Authority/State Govt. / Central Govt. Shall make it mandatory for the institutions under their jurisdiction to compulsorily incorporate such information in their 'Prospectus'. These Regulations shall be printed in the brochure of admission/instruction booklet for candidates.

3. The application form for admission/enrolment shall have a printed affidavit, preferably both in English and Hindi and/or in one of the regional languages. The affidavit should be filled up and signed by the candidate to the effect that he/she is aware of the law regarding prohibition of ragging as well as the punishments, and that he/she, if found guilty of the offence of ragging and/or abetting ragging, is liable to be punished appropriately.

4. The application form shall also contain a printed affidavit, preferably both in English and Hindi and/or in one of the regional languages and the affidavit should be signed by the parent/guardian of the applicant to the effect that he/she is also aware of the law in this regard and agrees to abide by the punishment meted out to his/her ward in case the latter is found guilty of ragging and/or abetting ragging.

5. The application for admission shall be accompanied by a document along with the School Leaving Certificate/Character Certificate which shall include a report on the behavioral patter of the applicant, so that the institution can thereafter keep intense watch upon the student who has a negative entry in this regard.

6. A student seeking admission to the hostel shall have to submit another affidavit along with his/her application for hostel accommodation that he/she is also aware of the law in this regard and agrees to abide by the punishments meted out if he/she is found guilty of ragging and/or abetting ragging.

7. Every technical institution, University including Deemed to be University imparting technical education shall maintain a proper record of the affidavits obtained to ensure its safe up keep thereof, including digital copies of the affidavits and such digital copy should be made available to the AICTE or to an Agency identified/nominated by AICTE.

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8. The AICTE or an Agency identified/nominated for the purpose and affiliating Universities and Directorate of Technical Education of the concerned State Govt. /UT shall maintain an appropriate data base of the affidavits in the digital form obtained from every student at the time of admission to the technical institutions, Universities including Deemed to be Universities imparting technical education.

9. Each batch of fresher's should be divided into small groups and each such group shall be assigned to a member of staff. Such staff member should interact individually with each member of the group on daily basis to ascertain the problems/difficulties, if any faced by the freshers in the Institution and extend necessary help.

10. In case of fresher's admitted to a Hostel it shall be the responsibility of the teacher in charge of the group to co-ordinate with the warden of the Hostel and to make surprise visits to the rooms in the hostel where the members of the group are lodged. Freshers should be lodged in a separate hostel block wherever possible and where such facilities are not available, the college/institution shall ensure that seniors' access to fresher's accommodation is strictly monitored by wardens, Security Guards and Staff.

11. Every institution should engage or seek the assistance of professional counselors at the time of admissions to counsel freshers in order to prepare them for the life ahead, particularly for adjusting to the life in hostels. At the commencement of the academic session the Head of the technical Institution, University including Deemed to be University imparting technical education shall convene and address a meeting of various functionaries/agencies, like Wardens, representatives of students, parents/guardians, faculty, district administration including police, to discuss the measures to be taken to Prevent ragging and steps to be taken to identify the offenders and punish them suitably.

12. Every fresher admitted to the technical Institution, University including Deemed to be University imparting technical education shall be given a printed information booklet detailing when and whom he/she has to turn to for help and guidance for various purposes (including Wardens, Head of the institution, members of the anti-ragging committee, relevant district and police authorities), addresses and telephone numbers of such persons/authorities, etc.

13. The technical institutions, University including Deemed to be University imparting technical education through the information booklet mentioned above shall explain to the new entrants the arrangements for their induction and orientation which promote efficient and effective means of integrating them fully as students.

14. The information booklet mentioned above shall also tell the fresher's about their rights as bona fide students and clearly instructing them that they should desist from doing anything against their will even if ordered by the seniors, and that they have nothing to fear as the institution cares for them and shall not tolerate any atrocities against them.

15. The information booklet mentioned above shall contain a calendar of events and

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activities laid down by the institution to facilitate and complement familiarization of juniors with the academic environment of the institution.

16. To make the community at large and the students in particular aware of the dehumanizing effect of ragging, and the approach of the institution towards those indulging in ragging, big posters (preferably with different colors for the provisions of law, punishments, etc.) shall be prominently displayed on all Notice Boards of all departments, hostels and other buildings as well as the vulnerable places Some of such posters shall be of permanent nature in certain vulnerable places.

17. The technical Institution, University including Deemed to be University imparting technical education shall request the media to give adequate publicity to the law prohibiting ragging and the negative aspects of ragging and the institution's resolve to ban ragging and punish those found guilty without fear or favor.

18. The technical Institution, University including Deemed to be University imparting technical education shall identify, properly illuminate vulnerable locations.

19. The technical Institution, University including Deemed to be University imparting technical education shall tighten security in its premises, especially at the vulnerable places. If necessary, intense policing shall be resorted to at such points at odd hours during the early months of the academic session.

20. The technical Institution, University including Deemed to be University imparting technical education shall utilize the vacation period before the start of the new academic year to launch wide publicity campaign against ragging through posters, information booklets, seminars, street plays, etc.

21. The faculties/departments/units of the technical Institution, University including Deemed to be University imparting technical education shall have induction an-arguments (including those which anticipate, identify and plan to meet any special needs of any specific section of students) in place well in advance of the beginning of the academic year with a clear sense of the main aims and objectives of the induction process.

22. Mobile Phones and other communication devices may be permitted in residential areas including hostels to provide access to the student's particularly fresher's, to reach out for help from teachers, parents and Institution authorities.

6. **Monitoring mechanism in technical institution, University including Deemed to be University imparting technical education: -**

a) **Anti-ragging Committee:** Every institution University including Deemed to be University imparting technical education shall constitute a Committee to be known as the Anti-ragging Committee to be nominated and headed by the Head of the Institution, and consisting of representatives of civil and police

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administration, local media, Non-Government Organizations involved in youth activities, representatives of faculty members, representatives of parents, representatives of students belonging to the fresher's category as well as senior students, non-teaching staff; and shall have a diverse mix of membership in terms of level as well as gender.

b) It shall be the duty of the Anti-Ragging Committee to ensure compliance with the provisions of these Regulations as well as the provisions of any law for the time being in force concerning ragging and also to monitor and oversee the performance of the Anti-Ragging Squad in prevention of ragging in the institution.

c) **Anti-Ragging Squad:** Every Institution University including Deemed to be University imparting technical education shall also constitute a smaller body to be known as the Anti-Ragging Squad to be nominated by the Head of the Institution with such representation as may be considered necessary for maintaining vigil, oversight and patrolling functions and shall remain mobile, alert and active at all times. Provided that the Anti-Ragging Squad shall have representation of various members of the campus community and shall have no outside representation.

d) It shall be the duty of the Anti-Ragging Squad to be called upon to make surprise raids on hostels, and other places vulnerable to incidents and having the potential for ragging to inspect such places.

e) It shall also be the duty of the Anti-Ragging Squad to conduct an on-the-spot enquiry into any incidents of ragging referred to it by the Head of the institution or any member of the faculty or any member of the staff or any student or any parent or guardian or any employee of a service provider or by any other person, as the case may be; and the enquiry repo1i along with recommendations shall be submitted to the Anti-Ragging Committee for action. Provided that the Anti-Ragging Squad shall conduct such enquiry observing a fair and transparent procedure and the principles of natural justice and after giving adequate opportunity to the sh1dent or students accused of ragging and other witnesses to place before it the facts, documents and views concerning the incidents of ragging, and considerations such other relevant information as may be required.

f) **Mentoring Cell:** Every institution shall, at the end of each academic year, in order to promote the objectives of these Regulations, constitute a Mentoring Cell consisting of students volunteering to be Mentors for fresher's, in the succeeding academic year; and there shall be as many levels or tiers of Mentors as the number of batches in the institution, at the rate of one Mentor for six fresher's and one mentor of a higher level for six Mentors of the lower level.

g) **Monitoring Cell on Ragging:** - The State Govt. /UT and the affiliating University shall set up a rvfo1 litoring Cell on Ragging to coordinate with the institutions to monitor the activities of the Anti-Ragging Committees, Squads, and Mentoring Cells, regarding compliance with the instructions on conducting orientation programmes, counseling sessions, etc., and regarding the incidents of ragging, the problem faced by wardens and other officials, etc. This Cell shall also review the efforts made by such institutions to

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publicize anti-ragging measures, cross-verify the receipt of affidavits from candidates/students and their parents/guardians every year, and shall be the prime mover for initiating action by the University authorities to suitably amend the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

h) The Monitoring Cell shall coordinate with the institutions, universities including deemed to be universities imparting technical education to achieve the objectives of these Regulations; and the Monitoring Cell shall call for reports from the Heads of institutions in regard to the activities of the Anti-Ragging Committees, Anti-Ragging Squads, and Mentoring Cells at the institutions, and it shall also keep itself abreast of the decisions of the Anti-Ragging Committees etc.

i) The Monitoring Cell shall also review the efforts made by institutions to publicize anti-ragging measures, soliciting of affidavits from parents/guardians and from students, each academic year, to abstain from ragging activities or willingness to be penalized for violation; and shall function as the prime mover for initiating action for amending the Statues or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

7. Action to be taken against the Principal or the Head of the Institution/Faculty Members/Non-Teaching staff of technical institution, Universities including deemed to be Universities imparting technical education.

1. The Head of the Institution along with other administrative authorities should take adequate measures for prevention of ragging. Any lapse on the part of these authorities shall make them liable for criminal action for negligence of duty. The technical Institution, University including Deemed to be University imparting technical education should incorporate a clause in their letter of appointment that the Director, Faculty and other administrative Heads should ensure all possible steps for prevention of ragging in the premises of the educational institutions, and that they are liable for action, in case of non-compliance.
2. The Principal or Head of the Institution/Department shall obtain an affidavit from every employee of the Institution including teaching/non-teaching staff, contract labor employed in the premises either for running canteen or as watch and ward staff or for cleaning or maintenance of the building, lawns; etc. that he/she would report promptly any case of ragging which comes to his/her notice. A provision shall be made in the service rules for issuing certificates of appreciation to such members of the staff who report ragging which will form part of their service records.
3. Departmental enquiries shall be initiated, in addition to penal consequences against such heads of the Institution/Faculty members/non-teachings staff who display an apathetic or insensitive attitude towards complaints of ragging and would not take timely steps in the prevention of ragging and punishing those who rag.
4. The Principal or the Head of the Institution/Faculty Members/Non-Teaching

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staff, if found negligent in taking necessary measures for ensuring safety of students and preventing the ragging would be declared unfit for holding any post in any technical institution. University including Deemed to be University imparting technical education.

8. Actions to be taken against students for indulging and abetting ragging in technical institutions Universities including Deemed to be University imparting technical education: -

1. The punishment to be meted out to the persons indulged in ragging has to be exemplary and justifiably harsh to act as a deterrent against recurrence of such incidents.

2. Every single incident of ragging a First Information Report (FIR) must be filed without exception by the institutional authorities with the local police authorities.

3. The Anti-Ragging Committee of the institution shall take an appropriate decision, with regard to punishment or otherwise, depending on the fact of each incident of ragging and nature and gravity of the incident to dragging.

4. a) Depending upon the nature and gravity of the offence as established the possible punishments for those found guilty of ragging at the institution level shall be any one or any combination of the following: -

   (i) Cancellation of admission
   (ii) Suspension from attending classes
   (iii) Withholding/withdrawing scholarship/fellowship and other benefits
   (iv) Debarring from appearing in any test/ examination or other evaluation process with holding results.
   (v) Debarring from representing the institution in any regional, national or international meet, tournament, youth festival, etc.
   (vi) Suspension/expulsion from the hostel
   (vii) Rustication from the institution for period ranging from 1 to 4 semesters
   (viii) Expulsion from the institution and consequent debarring from admission to any other institution.
   (ix) Collective punishment: when the persons committing or abetting the crime of ragging are not identified, the institution shall resort to collective punishment as a deterrent to ensure community pressure on the potential raggers.

   b) An appeal against the order of punishment by the Anti-Ragging Committee shall lie,

   (i) In case of an order of an institution, affiliated to or constituent part, of the University, to the Vice-Chancellor of the University.

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Rules & Regulations for Prevention and Prohibition of Ragging

The All India Council For Technical Education (AICTE}, New Delhi vide its Notification no. 37-3/Legal/AICTE/2009 dated 25-03-2009 has taken a very serious view of ragging incidences in educational institutions and on Directions of the Hon'ble Supreme Court of India vide its Order dated 16.5.2007 has ordered strict implementation of following rules &regulations for Prevention and prohibition of Ragging in technical Institutions.

Various Types of Ragging

The Hon'ble Supreme Court has, Inter-alia, mentioned the following types of ragging:-

1. Ragging has several aspects with, among others, psychological, social, political, economic, cultural, and academic dimensions.
2. Any act that prevents, disrupts or disturbs the regular academic activity of a student should be considered within the academics related aspect of ragging: similarly, exploiting the services of a junior student for completing the academic tasks assigned to an individual or a group of seniors is also an aspect of academics related ragging prevalent in many institutions, particularly in the technical institutions.
3. Any act of financial extortion or forceful expenditure burden put on a junior student by senior students should be considered an aspect of ragging for ragging economic dimensions.
4. Any act of physical abuse including all variants of it: sexual abuse, homosexual assaults, stripping, forcing obscene and lewd acts, gestured, causing bodily harm or any other danger to health or person can be put in the category of ragging with criminal dimensions.
5. Any act or abuse by spoken words, emails, snail-mails, blogs, public insults should be considered within the psychological aspects of ragging. This aspect would also include deriving perverted pleasure, vicarious or sadistic thrill from actively or passively participating in the discomfiture to others; the absence of preparing 'fresher's in the run up to their admission to higher education and lifeinhostels also can be ascribed as a psychological aspect of ragging -coping skills in interaction with seniors or strangers can be imparted by parents as well. Any act that affects the mental health and self- confidence of students also can be described in terms of the psychological aspects of ragging.
6. The human Rights perspective of ragging involves the injury caused to the fundamental right to human dignity through humiliation heaped on junior students by seniors; often resulting in the extreme step of suicide by the victims.

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Actions to be taken against students for indulging and abetting in Ragging in technical institutions Universities including Deemed to be University imparting technical education: -

1. The punishment to be meted out to the persons indulged in ragging has to be exemplary and justifiably harsh to act as a deterrent against recurrence of such incidents. The students who are found to be indulged in ragging should be debarred from taking admission in any technical institution in India.
2. Every single incident of ragging a First Information Report (FIR) must be filed without exception by the institutional authorities with the local police auth6rities.
3. Depending upon the nature and gravity of the offence as established by the Anti-Ragging Committee of the institution, the possible punishments for those found guilty of ragging at the institution level shall be any one or any combination of the following.

   (i) Cancellation of admission
   (ii) Suspension from attending classes
   (iii) Withholding/withdrawing scholarship/fellowship and other benefits
   (iv) Debarring from appearing in any test/examination or other evaluation process
   (v) Withholding results
   (vi) Debarring from representing the institution in any regional, national or international meet, tournament, youth festival, etc.
   (vii) Suspension/expulsion from the hostel
   (viii) Rustication from the institution for period ranging from 1 to 4 semesters
   (ix) Expulsion from the institution and consequent debarring from admission to any other institution.
   (x) Fine of Rupees 25,000/-
   (xi) Collective punishment: when the persons committing or abetting the crime of ragging are not identified, the institution shall resort to collective punishment as a deterrent to ensure community pressure on the potential raggers.

4. The institutional authority shall intimate the incidents of ragging occurred in their premises along with actions taken to the Council immediately after occurrence of such incident and inform the status of the case from time to time.

5. Courts should make an effort to ensure that cases involving ragging are taken upon priority basis to send the correct message that ragging is not only to be discouraged but also to be dealt with sternness.

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